

Andhra Pradesh Legislative Assembly Secretariat Right to Information (Regulation of Fee and cost) Rules, 2006

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State of Andhra Pradesh - Act

Andhra Pradesh Legislative Assembly Secretariat Right to Information (Regulation of Fee and cost) Rules, 2006

ANDHRA PRADESH

India

Andhra Pradesh Legislative Assembly Secretariat Right to Information (Regulation of Fee and cost) Rules, 2006

Rule

ANDHRA-PRADESH-LEGISLATIVE-ASSEMBLY-SECRETARIAT-RIGHT-TO-INFORMATION-REGULATION-OF-FEE-AND-COST-RULES-2006 of 2006

Published on 16 June 2006

Commenced on 16 June 2006

[This is the version of this document from 16 June 2006.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh Legislative Assembly Secretariat Right to Information (Regulation of Fee and cost) Rules, 2006

Published vide Notification No. G.O. Ms. No. 27, Legislature (OP.I), dated 16.06.2006

Last Updated 12th September, 2019

No. G.O. Ms. No. 27. - In exercise of the powers conferred by Section 28 of the Right to Information Act, 2005 (Central Act No.22 of 2005), the Speaker, Andhra Pradesh Legislative Assembly hereby makes the following rules :-

1.

Short-title and commencement.

- (i) These Rules may be called the Andhra Pradesh Legislative Assembly Secretariat Right to Information (Regulation of Fee and cost) Rules, 2006.

(ii)

They shall come into force from the date of publication in the official Gazette.

2.

Definitions.

- In these Rules, unless the context otherwise requires:

(i)

'Act' means the Right to Information Act, 2005.

(ii)

'Section' means section of the Act, and

(iii)

All other words and expressions used herein but not defined in the Act shall have the meanings assigned to them in the Act.

3.

A request for obtaining information under Sub-Section (1) of the Section (1) of the Section 6, shall be made on plain paper in the format specified in Form-A to the State Public Information Officer or the State Assistant Public Information Officer as the case may be and shall be accompanied by an application fee of rupees ten by way of cash against proper receipt or by Demand Draft or Banker's Cheque payable to the Drawing and Disbursing Officer, Andhra Pradesh Legislative Assembly Secretariat.

4.

For providing information under Sub-Section (1) of Section 7, the fee shall be charged by way of cash against proper receipt or by Demand or Banker's Cheque payable to the Drawing and Disbursing Officer, Andhra Pradesh Legislative Assembly Secretariat, at the following rates :-

(A)

Priced Material. - Publications, printed matter, text, maps, plans, floppies, CDs samples, models or material in any other form, which are priced, the sale price thereof.

(B)

Other than priced material. - (i) Material in printed or text form (in A-4 or A-3 size paper) rupees two per each page per copy;

(ii)

Material in printed or text form in larger than A-4 or A-3 size, cost of the paper thereof;

(iii)

Maps and Plans-actual cost thereof;

(iv)

Information in Electronic format viz.. Floppy, CD, or DVD:

(a)

rupees fifty for Floppy of 1.44 MB;

(b)

rupees one Hundred for CD of 700 MB: and

(c)

rupees Two Hundred for CD (DVD).

(v)

Samples and models-actual cost thereof:

(vi)

Material to be sent by post - the actual postal charges in addition to the charge payable as per these rules.

5.

Appeal.

- Any person who, does not receive a decision within the time specified in sub-section (1) or clause (a) of subsection (3) of Section 7 or is aggrieved by an order of the Public Information Officer may, within thirty days from the date of receipt of the order of the Public Information Officer, prefer an appeal to the appellate authority (Secretary to State Legislature)

on plain paper in the format specified in Form-B which shall be accompanied by an appeal fee of rupees twenty by way of cash or by demand draft or banker's cheque payable to the Drawing and Disbursing Officer, Andhra Pradesh Legislature Secretariat against proper receipt.

6.

Head of account.

- The application fee and the cost ordered to be charged for providing information by the Drawing and Disbursing Officer or any other authorized officer of the Public Authority shall be remitted to the following Head of Account:

'0070-Other Administrative Services - 60 - Other Services- MH 800-Other Receipts - SH(25) - Receipt under Right to Information Act 2005 - 001 Receipts under Right to Information Act 2005".

Form-A

(See Rule 3)

Application form for obtaining information.

To

The State Public Information Officer/State Assistant Public Information Officer, Andhra Pradesh Legislature Secretariat, Public Gardens, Hyderabad - 500004.

1. Name of the applicant.

2. Full Address.

3. Brief particulars of information required.

4. I hereby state that the information sought for is not covered under the categories which are exempted from disclosure of information under Section 8 or under Section 9 of the Right to Information Act, 2005 to the best of my knowledge it pertains to your Secretariat.

5. I hereby state that the prescribed application fee of Rs.....has been paid vide Receipt No.....dated.....to Drawing and Disbursing Officer, Andhra Pradesh Legislature Secretariat, towards the fee payable.

Place:

Date:

Signature of the Applicant.

Form-B

(See Rule 5)

Appeal under Section 19 (1) of the Right to Information Act, 2005.

To

The Appellate Authority,

Andhra Pradesh Legislature Secretariat, Public Gardens, Hyderabad - 500004.

1. Full name of the appellant.

2. Full Address

3. Particulars of the Public Information Officer.

4. Date of receipt of the order appealed against (if order passed)

5. Last date for filing the appeal.

6. The grounds for appeal.

7.

Particulars of information.

(i)

Nature and subject matter of the information required.

(ii)

Name of the Officer to which the information relates.

Place:

Date:

Signature of the Appellant.

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